

Broad/repeated questions

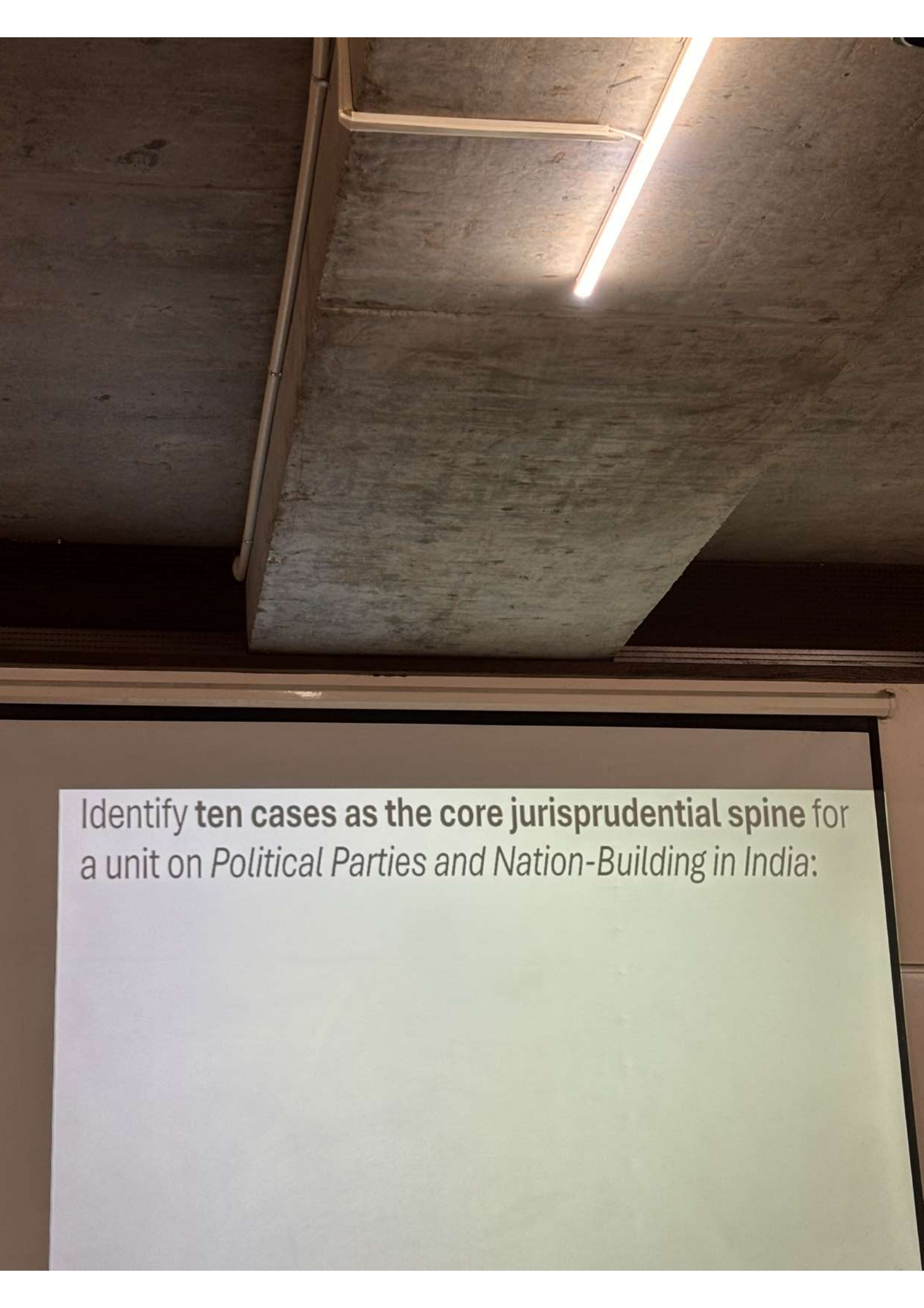
- Analyse the evolution of the Indian party system since independence and critically evaluate its contribution to the making and consolidation of the Indian nation-state.
- "The durability of Indian democracy owes as much to the adaptability of its party system as to the formal constitutional framework." Analyse and critically assess this proposition.

Concluding questions

- "The evolution of the Indian party system has produced not only democratic mobilisation and representation but also criminalisation, personalisation, identity-based mobilisation, political opportunism and organisational centralisation."
- Critically examine these tendencies and assess their implications for the consolidation of democratic nation-building in India since independence.
- "The anti-defection law was introduced to curb political instability, but its operation has generated new tensions between party discipline, legislative autonomy and intra-party democracy."
- Critically examine the rationale, limitations and unintended consequences of the anti-defection regime in India. Or
- The persistence of political opportunism despite the anti-defection regime raises questions about the effectiveness of law as a substitute for political morality and intra-party democracy."

1994	Party Politics, Federalism & Secularism	<i>S.R. Bommai v. Union of India</i>	9	Yes	<u>Major constitutional decision on Article 356, federalism and secularism; particularly important for understanding Centre-State party competition.</u>
1995	Electoral Institutions & Party Competition	<i>T.N. Seshan v. Union of India</i>	5	Yes	<u>Addressed the institutional independence and structure of the Election Commission and its role in electoral governance,</u>
1996	Religion, Caste & Electoral Politics	<i>Ramesh Yeshwant Prabhoo v. Prabhakar Kashinath Kunte</i>	3	No	Important for understanding the interpretation of religious appeal in electoral campaigns and the limits of identity-based mobilisation.
2002	Voter Information & Electoral Accountability	<i>Union of India v. Association for Democratic Reforms</i>	3	No	Established voters' right to information concerning candidates, including relevant criminal and financial antecedents.
2002	Political Parties & Constitutional Regulation	<i>Indian National Congress (I) v. Institute of Social Welfare</i>	3	No	Examined the Election Commission's power concerning registration/deregistration of political parties and the limits of institutional regulation.
2003	Voter Information & Electoral Choice	<i>PUCL v. Union of India</i>	3	No	<u>Reinforced the constitutional significance of information to informed electoral choice.</u>
2006	Political Parties & Parliamentary Democracy	<i>Kuldip Nayar v. Union of India</i>	5	Yes	<u>Particularly important for your course: the Court discussed political parties as central to parliamentary democracy and examined the relationship between the electoral system, representation and federalism.</u>
2006	Political Instability & Government Formation	<i>Rameshwar Prasad v. Union of India</i>	5	Yes	Examined dissolution of the Bihar Legislative Assembly against the background of competing claims to government formation and political realignment.
2007	Defection & Legislative Representation	<i>Rajendra Singh Rana v. Swami Prasad Maurya</i>	5	Yes	Important application of the Tenth Schedule and legislative-party conduct

2013	Criminalisation of Politics	Lily Thomas v. Union of India	2	No	Strengthened the statutory consequences of conviction for sitting legislators by invalidating the protection that had allowed convicted legislators to continue pending appeal.
2014	Criminalisation & Constitutional Morality	Manoj Narula v. Union of India	5	Yes	Considered the constitutional position concerning appointment of persons facing serious criminal charges as ministers and the relationship between constitutional morality and political governance.
2017	Religion, Caste & Electoral Politics	Abhiram Singh v. C.D. Commachen	7	Yes	Authoritatively interpreted Section 123(3) of the Representation of the People Act concerning appeals for votes on grounds of religion, race, caste, community or language, (Indian Kanoon)
2018	Criminalisation of Politics	Public Interest Foundation v. Union of India	5	Yes	Held that mere framing of criminal charges does not itself create a judicially imposed electoral disqualification, while directing enhanced disclosure and calling for legislative action. (Live Law)
2020	Defection & Delay in Adjudication	Keisham Meghachandra Singh v. Speaker, Manipur Legislative Assembly	3	No	Addressed prolonged delay by Speakers in deciding Tenth Schedule petitions and became important in debates about the adequacy of the present anti-defection mechanism.
2023	Party Organisation, Defection & Government Formation	Subhash Desai v. Principal Secretary, Governor of Maharashtra	5	Yes	Major contemporary judgment concerning the relationship between the political party and its legislature party, appointment of the whip, Governor's role and Tenth Schedule proceedings. (Sci API)
2024	Political Funding & Electoral Transparency	Association for Democratic Reforms v. Union of India — Electoral Bonds	5	Yes	Struck down the Electoral Bond Scheme and related provisions concerning anonymous political contributions, holding that information concerning political funding falls within the Article 19(1)(a) right to information. (Supreme Court O



Identify **ten cases** as the **core jurisprudential spine** for a unit on *Political Parties and Nation-Building in India*:

Final Questions

- Analyse the evolution of judicial intervention in Indian party politics from electoral democracy and party discipline to political defection, identity mobilisation, criminalisation and political funding. How has the Supreme Court sought to reconcile party autonomy with constitutional accountability?
- “Judicial intervention has progressively transformed the constitutional regulation of political parties without completely displacing the political domain.” Critically examine this proposition with reference to landmark Supreme Court decisions on anti-defection, federalism, electoral integrity and political-party regulation.
- Evaluate the role of the Supreme Court in addressing the negative tendencies of Indian party politics—defection, criminalisation, identity-based electoral mobilisation, political funding and weak accountability. To what extent has judicial intervention addressed the institutional problems underlying these tendencies?

Anoop Baranwal to DR. JAYA THAKUR

- The Supreme Court of India, in *Anoop Baranwal v. Union of India* ([2023] 9 S.C.R. 1), addressed a critical constitutional question regarding the independence of the Election Commission of India.
- The Interim Selection Panel: The Court ruled that the Chief Election Commissioner (CEC) and Election Commissioners (ECs) must be appointed by the President of India on the advice of a high-powered committee consisting of:
 - The Prime Minister
 - The Leader of the Opposition in the Lok Sabha (or the leader of the single largest opposition party)
 - The Chief Justice of India (CJI)
- Filling the Legal Vacuum: Justice Joseph noted that the absence of a dedicated parliamentary law under Article 324 of the Constitution created an institutional vacuum for over 70 years, leaving appointments solely to executive discretion.
- Duration of the Rule: The Supreme Court directed that this three-member panel requirement would remain in force as an interim measure until Parliament enacts a substantive law regarding the appointments
- Subsequent Developments
- Parliamentary Action: In December 2023, Parliament passed the Chief Election Commissioner and other Election Commissioners Act, 2023.
- Modification of the Panel: The legislative enactment replaced the Chief Justice of India on the selection committee with a Union Cabinet Minister nominated by the Prime Minister, altering the composition originally laid down by the Supreme Court's interim directive.